

Running head: STUDENT RIGHTS

Reader Workshop

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The main focus of this chapter concerns students' rights to admissions and attendance, compulsory attendance, corporal punishment, and race and sex discrimination. Many of these issues are based on the statutes and case law that relate to the judicial decisions of the U.S. court system at the national, state, and local levels, and on the impact of these decisions on the school's operating procedures, practices, and policies. Nevertheless, every student has rights to free speech under the First Amendment, the Equal Protection Clause of the Fourteenth Amendment, and due process.

Admissions and Attendance

Chapter four begins with the school admissions and attendance policies. According to the Equal Protection Clause of the Fourteenth Amendment of the U.S. Constitution, once a program for free public education has been established, the law must be applied equally to all persons, regardless of age, color, race, religion, or any other factor (pg. 141). However, schools may, within certain limits, establish health regulations, set minimum age requirements, require immunization, adopt a curriculum, and require that all students meet certain graduation requirements.

There are several judicial decisions on school admissions policy, and they sometimes conflict with each other. In one instance, the court says that the school admissions policy should be race-neutral, and in another, it requires schools to review each and every admissions application and give underrepresented minorities preferential consideration. There are also other instances that voters of the state and local governments have approved initiatives for race-neutrality, but the court has repeatedly rejected them by saying, "... racial integration is close to the central mission of public schools." (p. 142). There is also the No Child Left Behind Act (NCLB), which is more of an issue in primary schools, where administrators must admit students

within the same attendance locality. Nevertheless, schools are subject to these judicial decisions and school law and must comply with them.

Compulsory Attendance

There is no specific law mandating compulsory attendance at secondary schools, but there are several judicial decisions addressing attendance at primary schools. In many of those cases, the court has ruled in favor of school administrators, holding that school districts have the right to set attendance policies. However, schools may need to provide parents with written notification of a student's unexcused absence (pg. 153). Moreover, any person with control over a school-age child must make every effort to enroll him/her in school.

Corporal Punishment

Corporal punishment is the deliberate infliction of physical pain by school authorities intended to correct behavior or to punish. The students are protected under the Due Process Clause of the Fourteenth Amendment. Corporal punishment is a matter of state law. Some states allow the use of corporal punishment, but it must be distinguishable from "reasonable physical force" to restrain unruly students, maintain order, and prevent injury (pg. 161). California bans corporal punishment in public schools (California Education Code Section 49000/49001). However, school administrators are entitled to substantial deference in their efforts to maintain order and discipline, but they must avoid excessive use of force.

Race Discrimination

Title VI of the Civil Right Act of 1964, the Equal Protection Clause, and analogous state law provision, school district and administrators could be liable if they are deliberately indifferent to known acts of student-on-student harassment (pg. 164). It states that school administrators are not bystanders but the leaders of the educational environment.

Sex Discrimination

Title IX of the Education Amendments of 1972 prohibits discrimination on the basis of sex in education programs and activities receiving Federal financial assistance (pg. 168). School districts may be held liable under Title IX for deliberate indifference to known acts of peer sexual harassment. According to Title IX liability, harassment must be so severe, pervasive, and objectively offensive that it deprives the victim of access to educational opportunities or benefits (pg. 168). In addition, schools are required to notify elementary and secondary students and their parents of their policy against sex discrimination and to have in place a prompt and equitable procedure for resolving sex discrimination complaints. Furthermore, school policy and procedure must meet all procedural requirements of Title IX, but they do not have to include a policy and procedure specifically addressing sexual harassment, as long as the school's non-discrimination policy and procedures for handling discrimination complaints are effective in eliminating all types of sex discrimination.

In conclusion, based on these judicial decisions and case law, school administrators play a very important role. They are the leaders of the educational environment and are responsible for what goes on in their schools. For this reason, it is important for school officials to review and understand school law, as well as judicial decisions at the national, state, and local levels, so they can avoid unnecessary complaints and lawsuits and focus more on students' learning. There are many questions regarding race and diversity; I think schools must apply the same standards to all students and be fair as well. Diverse strong empirical evidence indicated that a racially diverse student population provides benefits for all students. One thing the book failed to mention is that awareness is a key element in preventing these discriminations.

References

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